

Tentative Rulings
May 18, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court will no longer provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *Percy v. Urbina, et al*, Case No. CIVSB2501710
Motion to Compelling Responses to Subpoena Duces Tecum
5/18/26, 9:00 a.m., Dept. S17

The Court would **GRANT** this unopposed motion.

Third Party, Uber Technologies, Inc., shall comply within ten (10) days. Responses may include objections.

The Court would also award sanctions in the amount of \$1,000, due within thirty (30) days. While the movant sought more in sanctions, the Court would deviate downward as the motion was terse, uncomplicated, and uncontested.

15. *Lopez v. United Parcel Service, Inc., et al*, Case No. CIVSB2512060
Defendant UPS's Motion for Judgment on the Pleadings
5/18/26, 9:00 a.m., Dept. S-17

This matter was continued from its original date on March 19, 2026, to allow meet-and-confer efforts

Tentative Ruling

As to Requests for Judicial Notice: The Court would **GRANT** Defendant's request to take notice of the bankruptcy filings [RJN, Exhs. A-B] and of the arbitration documents [RJN, Ex. D], for the purpose of showing that arbitration took place. The Court would **DENY** as to the collective bargaining agreement. (RJN, Exh. C.)

As to the Motion: The Court would **DENY**, without prejudice, as judicial estoppel cannot be determined from the facts alleged and bankruptcy filings alone. The Court would **GRANT LEAVE** of 30 days to allow for an amended complaint to address the standing issue.

Case Summary

This is, essentially, a discrimination and wrongful termination of employment action. Plaintiff alleges that he was hired by Defendant in 1997 to work at its Ontario, California facility. He asserts that, starting as of 2005, he was promoted to work in Revenue Audit, scanning boxes, among other things. Sometime in 2005, he asserts he felt a sharp pain in his shoulder and went through the workers' compensation process, being returned to work without restrictions. He was told to self-medicate with over-the-counter ibuprofen, but he alleges his shoulder injury never fully healed.

About ten years later, having self-medicated with ibuprofen, Plaintiff alleges he developed kidney problems and Type II diabetes, among other things. In or around 2019, Plaintiff re-injured his shoulder and was once again sent to workers' compensation. However, this time, was placed on work restrictions. In February of 2020, he grew frustrated from what he viewed as inadequate treatment and hired a workers' compensation attorney who arranged for an MRI of the shoulder. The analysis resulted in Plaintiff being scheduled for reparative surgery. He notified Defendant of his need for temporary medical leave accommodation. In June of 2021, he returned to work, but in January of 2022 was diagnosed with stage four kidney failure. This diagnosis resulted in intermittent use of marijuana as a palliative or alternative to pain medication. Later, at a driver's recertification assessment, he was tested positive for marijuana and his employment was terminated.

On April 28, 2025, Plaintiff filed suit against Defendant for (1) disability discrimination; (2) failure to reasonably accommodate; (3) failure to engage in the interactive process; (4) retaliation in violation of the Fair Employment and Housing Act (FEHA); (5) failure to take all reasonable steps to prevent or remedy discrimination or retaliation; (6) wrongful termination in violation of public policy; (7) unlawful medical inquiry in violation of FEHA; (8) violation of Labor Code § 432.6 and Government Code § 12953; (9) violation of Labor Code §§ 226.7 and 512; (10) violation of Labor Code §§ 202-203; (11) violation of Labor Code § 558.1; and (12) violation of the unfair competition law.

Summary of the Law

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) If the moving party is the defendant, then a motion for judgment on the pleading (JOP) is limited to the grounds that the court has no jurisdiction over the subject of the cause of action or the complaint fails to state a cause of action. (Code Civ. Proc., § 438(c)(1)(B).) The grounds for a JOP shall appear on the face of the pleading or from any matter judicially noticed. (Code Civ. Proc., § 438(d).)

Analysis

Here, Defendant UPS asserts that Judgment on the Pleadings (JOP) Is appropriate since Plaintiff is judicially estopped from asserting the causes of action because he failed to list his claims against Defendant as an asset in his 2022 Chapter 7 bankruptcy. "In the bankruptcy context, a party is judicially estopped from asserting a cause of action not raised in a reorganization plan or otherwise mentioned in the debtor's schedules or disclosure statements." (*Hamilton v. State Farm Fire & Cas. Co.* (9th Cir. 2001) 270 F.3d 778, 783.) "Judicial estoppel will be imposed when the debtor has knowledge of enough facts to know that a potential cause of action exists during the pendency of the bankruptcy, but fails to amend his schedules or disclosure statements to identify the cause of action as a contingent asset." (*Id.* at p. 784.)

Plaintiff concedes the issue of failing to disclose his claims against Defendant in his 2022 bankruptcy action. He asserts this was due to a mistake of counsel or Plaintiff's legitimate good faith ignorance that it should have been disclosed. He also concedes there is an issue of standing in relation to his Chapter 7 bankruptcy. He argues that, instead of JOP, the proper remedy is to allow him to amend his Complaint and allow the bankruptcy trustee to appear as a real party in interest or to plead facts in support of standing.

This case appears controlled by *Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995. In *Cloud* similar facts are presented: the defendant Northrop terminated the plaintiff's employment, and the plaintiff filed a Chapter 7 bankruptcy petition. The *Cloud* plaintiff did not disclose any claim or potential claim against Northrop. (*Cloud, supra*, 67 Cal.App.4th at p. 998.) While her bankruptcy action was pending, the plaintiff filed a complaint with Department of Fair Employment and Housing (DFEH). And, after she received her discharge and while her bankruptcy was still pending, the *Cloud* plaintiff filed a wrongful termination and sexual harassment action against Northrup. The plaintiff's bankruptcy case was thereafter closed, and Northrup later brought a motion for judgment on the pleadings because the plaintiff had not scheduled her claims against Northrop as assets of her bankruptcy estate. Northrup raised the standing issue, as well as the judicial estoppel argument. (*Ibid.*)

While the Court of Appeal noted it was not technically proper to consider the plaintiff's declaration, it nonetheless discussed what the plaintiff stated about following her bankruptcy attorney's instruction, not knowing she had a valid claim against Northrop, and the circumstances of her filing. The Court of Appeal reversed the trial court's ruling that granted the motion without leave to amend based on lack of standing and judicial estoppel. It found that, with respect to standing, the trial court should have granted leave to amend because plaintiff could have substituted in the real party in interest, the bankruptcy trustee, or to obtain the trustee's abandonment of the claim. (*Id.* at pp. 1000-1011.)

The *Cloud* court discussed the specific facts and findings in *Ryan Operations G.P. v. Santiam-Midwest Lumber Co.* (3rd Cir. 1996) 81 F.3d 355, a summary judgment case, and that *Ryan* noted judicial estoppel is an "extraordinary remed[y] to be invoked when a party's inconsistent behavior will otherwise result in a miscarriage of justice." (*Ryan Operations G.P., supra*, 81 F.3d at p. 365.) "It is not meant to be a technical defense for litigants seeking to derail potentially meritorious claims, especially when the alleged inconsistency is insignificant at best and there is no evidence of intent to manipulate or mislead the courts." (*Ibid.*) "Judicial estoppel is not a sword to be wielded by adversaries unless such tactics are necessary to 'secure substantial equity.'" (*Ibid.*)

16. *Wells Fargo Bank, N.A., v. Sanchez*, Case No. CIVSB2522908
Plaintiff's Motion for Summary Judgment
5/18/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT** Plaintiff's motion for summary judgment. The Court would **DENY** Defendant's request to arbitrate in lieu of summary judgment. The Court would further decline to consider Defendant's "objections" due to inability to determine any specific objections because of failure to comply with applicable court rules.

Case Summary

This is a limited collections matter. Plaintiff alleges that it issued Defendant a credit card on which Defendant eventually stopped paying. Plaintiff initiated suit for the outstanding balance on August 8, 2025, alleging causes for (1) breach of written contract and (2) breach of implied-in-fact contract. Defendant answered.

Summary of the Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify of the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*)

A motion for summary judgment granted where moving party has not met its burden of showing that the action is without merit "would have to be reversed, *even if the plaintiff failed to introduce a scintilla of evidence challenging that element.*" (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 [emphasis in original].) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (*Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

The elements of a breach of contract action are the existence of the contract, plaintiff's performance or excuse for nonperformance, defendant's breach, and damages. (*First Commercial Mortgage Co. v. Reece* (2001) 89 Cal.App.4th 731, 745.) For breach of the implied contract, the elements are the same as for breach of written contract, except the contract may be implied from conduct and circumstances showing an intent to promise. (*Friedman v.*

Friedman (1993) 20 Cal.App.4th 876, 887.) The initial question is whether Plaintiff presented evidence establishing each element of the contract claims.

Here, Plaintiff presents evidence that Defendant applied for and was issued a credit card. (Plaint. Undisputed Material Fact (UMF) 1; Qualified Witness (Qual. Wit.) Decl., ¶¶9, 11, 15, Exhs. 1, 2; Lopez Decl., Exhs. 1, 2 (RFA No. 3).) Plaintiff sent Sanchez the credit card and written agreement for the card. (UMF 2, Qual. Wit. Decl., ¶¶10-11, Exh. 1.) Defendant accepted the terms of the written agreement when he used the credit card. (UMF 3, Qual. Wit. Decl., ¶12, Exh. 1.) In exchange for the ability to charge for goods, services, or obtain cash advances on the credit line, Defendant agreed to repay the principal plus interest and finance charges. (UMF 4, 5, Qual. Wit. Decl., ¶14, Exhs. 1, 2.) Thus, Plaintiff sent Defendant the credit card and extended credit to Defendant. (UMF 2, 4, Qual. Wit. Decl., ¶¶10-11, 14, Exhs. 1, 2.)

Then Defendant breached. Defendant used the credit card account, made payments and charges, and incurred a balance. (UMF 6, Qual. Wit. Decl., ¶15, Exh. 2.) Defendant's last payment on the account was May 12, 2023. (UMF 11, Qual. Wit. Decl., ¶¶21, 22, Exh. 2.) Defendant made no further payments on the account, putting him in default under the terms of the card agreement. (UMF 12, Qual. Wit. Decl., ¶¶21-22, Exhs. 1, 2.) There was a balance owed on the account. (UMF 13, Qual. Wit. Decl., ¶¶22, 23, Exh. 2.) The damages are the balance unpaid on the credit card. (UMF 14, Qual. Wit. Decl., ¶ 23, Exh. 2.)

While Defendant sets forth an opposition, it relates to irrelevant points such as open book account cause, which has not been pleaded. He further contends¹ there is an issue of material fact as to the existence of a contract, but he cites to an inapposite case and fails to set forth sufficient facts to display the issue. He further posits an affirmative defense related to Regulation Z of the Truth in Lending Act (TILA) but does not supply legal authority that Regulation Z applies here. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (*Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281.) Thus, Defendant has not presented a triable issue of material fact.

¹ It is worth noting that Defendant also failed to supply a separate statement in opposition. Failure to comply with this requirement is grounds, in and of itself, to grant the motion. (Code Civ. Proc., § 437c(b)(3).)